

Harinarayan Yadav vs Smt. Uma Devi @ Rambhwa Devi on 2 August, 2023

Author: Rongon Mukhopadhyay

Bench: Rongon Mukhopadhyay, Deepak Roshan

IN THE HIGH COURT OF JHARKHAND AT RANCHI
First Appeal No. 17 of 2020

Harinarayan Yadav, S/o Sri Atwari Gope, R/o Pipcho, P.S. Jainagar, P.O. Makatpur, District-Koderma. --- Appellant Versus Smt. Uma Devi @ Rambhwa Devi, W/o Harinarayan Yadav, R/o village- Dandadih, P.O. P.S. Jainagar, District-Koderma. --- Respondent

Coram: THE HON'BLE MR. JUSTICE RONGON MUKHOPADHYAY THE HON'BLE MR. JUSTICE DEEPAK ROSHAN

For the Appellant	: Mr. Binit Chandra, Advocate
For the Respondent	: Mr. Sanjay Kumar Pathak, Advocate

16/2.8.2023 Heard the parties.

2. This appeal is directed against the judgement dated 30.7.2016 passed by Shri Ashok Kumar Pathak, learned Principal Judge, Family Court, Koderma in Matrimonial Title Suit No. 10 of 2010, whereby and whereunder the suit preferred by the appellant for dissolution of marriage with the respondent under section 13 of the Hindu Marriage Act has been dismissed.

3. For the sake of convenience, both the parties are referred to as per their status in the learned court below.

4. A suit was preferred by the petitioner (appellant herein), in which it has been stated that the marriage of the petitioner was solemnized with the respondent on 27.5.2002 according to Hindu Rites & Customs. It has been alleged that the respondent had concealed her date of birth and had disclosed the same as 18.1.1985 whereas the real date of birth as per the Matriculation Certificate is 12.6.1988. At the time of the marriage, it was agreed upon by both the sides that the respondent will continue her higher education but the parents and brothers of the respondent did not allow the respondent to continue her studies. The petitioner was also prevented by the respondent to establish physical relationship with him. It has been alleged that the petitioner was humiliated on many occasions by the respondent. On 3.9.2006, the petitioner came from Delhi and approached the

brothers of the respondent Sukhdeo Yadav and Prakash Yadav for bidai of the respondent but he was humiliated and when he resisted the brothers of the respondent, at the instigation of the respondent herself had assaulted the petitioner for which the petitioner had to undergo a knee surgery in the year 2008. It has also been stated that the respondent did not agree to fulfil her marital obligations and stay with the petitioner as his wife. It has further been stated that since September, 2006, there has been no relationship between the petitioner and the respondent which compelled the petitioner to prefer the suit under section 13 of the Hindu Marriage Act.

5. On being noticed, the respondent had appeared and filed her written statement in which she had denied the allegations levelled against her by the petitioner.

6. It has been stated that the petitioner and his parents had deprived her from all love and affection and had also snatched her jewellery and had kept her in a dilapidated room. She has also alleged mental cruelty committed upon her by the petitioner and on 13.5.2010, the petitioner and her inlaws had abused her, assaulted her and had demanded a Hero Honda motorcycle and Rs.2,00,000/- in cash as additional dowry. On 26.5.2010, a Panchayti was convened in which the father of the petitioner was present who had undertaken to treat the respondent with proper dignity but the ill-treatment of the respondent continued at the hands of the petitioner and her inlaws. The respondent on account of being tortured and treated with cruelty was compelled to file a criminal case being Jainagar P.S. No. 80 of 2010 for the offences punishable under section 498A, 379, 323, 506/34 IPC. She has also stated to have filed a maintenance case being M. Case No. 55 of 2010 which is pending before the C.J.M., Koderma.

7. Based on the pleadings of the parties, the following issues were framed:-

- (i) Is the suit as framed maintainable?
- (ii) Whether the suit is hit by the proviso to section 13 of the Hindu Marriage Act, 1955?

(iii) Whether the petitioner has got valid cause of action and right to sue?

(iv) Whether the petitioner is entitled to a decree of divorce as prayed for ?

(v) Whether the petitioner is entitled to any relief or reliefs?

8. The petitioner in support of his case has examined six witnesses including himself.

P.W-1-Suresh Pandit is the neighbor of the father of the petitioner who has stated that on 3.9.2006 the petitioner had gone to take the bidai of his wife but her brothers did not allow the bidai and infact the petitioner was subjected to assault at the hands of her brother.

P.W-2-Sanjay Kumar Sinha is also a neighbor of the father of the petitioner and he has stated on similar terms as that of P.W-2.

P.W-3-Manoj Yadav is the maternal uncle of the petitioner who has stated about the marriage, which was solemnized in the year 2002. He has further stated that there was no conjugal relationship between the petitioner and the respondent. He has also referred to the incident of 3.9.2006 wherein the petitioner was assaulted by the brothers of the respondent when he had gone to take bidai of the respondent.

P.W-4-Atwari Gope is the father of the petitioner who has admitted about the marriage and has also stated about non establishment of any physical relationship between the petitioner and the respondent as well as the assault committed upon the petitioner by the brothers of the respondent. He has also stated about the Panchayti which was held on 30.6.2009.

P.W-5-Md. Ayub Khan was also a neighbor of the father of the petitioner who has stated that he had not attended the marriage ceremony of the petitioner and also does not have any knowledge that the petitioner and his brothers were studying.

P.W-6-Hari Narayan Yadav is the petitioner himself who has supported the averments made in the plaint to the effect that his marriage was solemnized with the respondent on 27.5.2002 and the respondent after two or three days returned to her parents' house and never lived with the petitioner either at village- Pipcho or at Bhuli. He has also stated about the refusal of the respondent accompanying the respondent on her bidai and the assault committed by the brothers of the respondent upon the petitioner. He has also stated about trying to establish marital relationship with the respondent but the same was not allowed by the respondent as well as her family members. He has stated about a false case under section 498A IPC having been instituted by the respondent against him.

In cross-examination, he has deposed that after four days of his marriage, he left for Delhi for his study and he came back to village- Pipcho on 2.9.2006. He has stated that he had never visited his village after 2006 and he is residing at village-Pipcho. He has also stated that on 4.9.2006 he was in the house of Manoj Yadav (P.W-3) at village Behradih where he stayed for two days.

9. The respondent has examined four witnesses in support of her case.

O.P.W-1 has stated about the marriage solemnized between the petitioner and the respondent and after five years, there was a demand of Rs.2,00,000/- on account of which dispute arose between the parties. He has stated that twice Panchayti was held in the year 2009 and 2010 and he was present at both the said Panchayats wherein it was resolved that the petitioner will keep the respondent with full honor and dignity and assurance was also given by the father of the petitioner that in case of any dispute he will transfer his immovable property in the name of the respondent. He has stated that the undertaking given before the Panchayat was never followed.

O.P.W-2-Hiraman Mistri has stated about the Panchayati held in the year 2009 and 2010 and the undertaking given by the petitioner that no dowry will be demanded and she will not be subjected to torture. He has stated that the respondent is presently residing at her parents' house and she is not being maintained by the petitioner and her inlaws.

O.P.W-3-Darshan Yadav's version is almost similar to that of O.P.W-1 and O.P.W-2.

O.P.W-4 is the respondent herself who has stated about the demand of dowry and on non fulfillment of which the torture which she was subjected to. She has further stated that in the Panchayat undertakings were given by the petitioner but the same was not adhered to which ultimately led her to institute a criminal case against the petitioner and her in-laws. She has further stated about the various modes of torture to which she was subjected to. She has also stated that every efforts were made for an amicable settlement between the parties but the petitioner refused and infact she is still ready and willing to lead her matrimonial life with the respondent.

In cross-examination, she has stated that the convening of the Panchayat was on account of the torture suffered by her at the hands of the petitioner and her inlaws on account of the non fulfilment of the demand of dowry. She has denied that the petitioner was subjected to assault by her brothers when he had come to take her bidai.

10. It has been submitted by Mr. Binit Chandra, learned counsel appearing for the appellant, that the appellant had made out a case for dissolution of marriage on the grounds of cruelty and desertion. It has been stated that the evidence of the witnesses clearly reveal that the respondent was unwilling to establish marital relationship with the petitioner and infact after a few days of marriage she had left her matrimonial house to stay at her parents' house. Learned counsel has submitted that the evidence of the witnesses further reveal that when the appellant had gone to take bidai of the respondent he was subjected to assault by the brothers of the respondent and infact he had to undergo a knee surgery on account of the injury suffered due to such assault. It has been submitted that the respondent had deserted the petitioner right from the time of inception of the marriage and the averments made in the plaint supported by the evidence of the witnesses clearly reveal that he was subjected to cruelty.

11. Mr. Sanjay Kumar Pandey, learned counsel appearing for the respondent, has submitted that the plaint itself indicates a vague assertion made by the petitioner/appellant with respect to the purported cruelty committed by the respondent upon the petitioner. It has further been submitted that the evidence of the witnesses of the appellant itself demolishes his case and infact no specific instance has been cited by the appellant which would indicate that he was subjected to mental cruelty. Learned counsel submits that infact the reverse would be there that it was on account of the torture committed by the appellant and inlaws of the respondent she was compelled to leave her matrimonial house and institute a case under section 498A IPC, in which the appellant has been convicted though after passing of the impugned judgment. It has therefore been submitted that since the learned court below has considered all aspects of the matter including the evidence of both the sides, no interference is necessitated in the impugned judgment dated 30.7.2016 passed by Shri Ashok Kumar Pathak, learned Principal Judge, Family Court, Koderma in Matrimonial Title Suit No. 10 of 2010.

12. We have heard the learned counsel for the respective sides and have also perused the Lower Court Records.

13. The learned court below has taken into consideration at the first instance the issue nos. (ii) and (iv) which appears to be pivotal in deciding the dispute between the parties. The petitioner had preferred the suit under section 13 of the Hindu Marriage Act and the tenor of the plaint and written statement would reveal that the suit was preferred on the ground of cruelty as well as desertion. So far as the cruelty purportedly committed by the respondent upon the petitioner is concerned it appears that vague assertions have been made by the petitioner in his plaint as well as in the evidence of his witnesses and no specific instance seems to have been highlighted which would buttress the allegation of mental cruelty committed by the respondent upon the petitioner. Infact though the witnesses of the petitioner including the petitioner himself has stated about an assault committed by the brothers of the respondent upon him which led to his undergoing a knee surgery but not a single chit of paper has been produced to substantiate such allegations. The evidence of the witnesses of the respondent reveals that twice Panchayti was held and an undertaking was given by the petitioner as well as his father to keep the respondent with full dignity and honor. It also appears from the record that the respondent on being compelled to leave her matrimonial house on account of the continuous torture meted out to her by the petitioner and her inlaws had instituted a criminal case against the petitioner and her inlaws under section 498A IPC apart from a case of maintenance under section 125 Cr.P.C.

14. As has been noted above, the only specific instance of cruelty committed upon the petitioner by the respondent appears to be the assault committed by the brothers of the respondent upon the petitioner but the petitioner has failed to prove by bringing on record any documentary evidence. The averments made in the plaint are totally vague and it would also appear that after two or three days of the marriage, the petitioner had left for his studies in Delhi and had come back in the year 2006 where he had gone to the house of the respondent for taking her bidai. It therefore cannot be said that it was on account of the respondent that the conjugal life could not be established between both of them. It would thus appear that the petitioner has failed to prove the allegation of cruelty as well as the allegation of desertion on the part of the respondent and both the issues have rightly been considered by the learned court below while answering the same against the petitioner and in favour of the respondent.

15. Based on the discussions made hereinabove, we do not find any reason to interfere with the judgement dated 30.7.2016 passed by Shri Ashok Kumar Pathak, learned Principal Judge, Family Court, Koderma in Matrimonial Title Suit No. 10 of 2010 and consequently this appeal is dismissed.

(Rongon Mukhopadhyay,J) (Deepak Roshan, J) Rakesh/-